



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: County Pocket Annexation #6
Date: May 12, 2025

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral May 12, 2025
- Public Services Committee May 19, 2025
- Final consideration May 27, 2025

This annexation is comprised of 38 properties 100% surrounded by the City (See attached map). Of the 38 parcels, a majority are developed with residential uses, a few are developed with commercial uses and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

On April 21, 2025, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Monday May 5, 2025.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, May 12, 2025	Resolution certifying compliance introduction
Monday, May 19, 2025	Public Services Committee
Tuesday, May 27, 2025	Final consideration of resolution
Monday, July 7, 2025	Zoning consideration by Planning Commission
Monday, July 14, 2025	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Monday, July 21, 2025	Annexation and Zoning ordinances Public Services Committee
Monday, July 28, 2025	Annexation and Zoning ordinances Governing Body second reading
Monday, August 4, 2025	Annexation and Zoning ordinances Public Services Committee
Monday, August 11, 2025	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately August 15, 2025	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN EAST CHEYENNE GENERALLY LOCATED SOUTH OF DELL RANGE BOULEVARD, EAST OF DRY CREEK, WEST OF WHITNEY ROAD, AND NORTH OF CHARLES STREET."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for various tracts of land situate in northeast Cheyenne as shown in Attachment A, which is attached hereto and incorporated herein, and which land is more particularly described as follows:

Area A:

ALL THAT PORTION OF TRACT 316 DESCRIBED AS BEGINNING AT A POINT ON THE WEST LINE OF SAID TRACT 316, 354' SOUTH OF THE NORTHWEST CORNER OF SAID TRACT; THENCE SOUTHERLY ALONG THE WEST LINE OF SAID TRACT 316, 118.22' TO A POINT; THENCE EASTERLY, PARALLEL TO THE SOUTH LINE OF SAID TRACT, 292' TO A POINT ON THE EAST LINE OF SAID TRACT; THENCE NORTHERLY ALONG THE EAST LINE OF SAID TRACT, 118.25' TO A POINT; THENCE WESTERLY, PARALLEL TO THE SOUTH LINE OF SAID TRACT 316, 292' TO THE POINT OF BEGINNING. PLUS THE EASTERLY 261' OF THE SOUTHERLY 127.19' OF SAID TRACT 316 DESCRIBED AS BEGINNING AT A 5/8" X 32" REBAR WITH AN ALUMINUM CAP BEING THE SOUTHEAST CORNER OF TRACT 316; THENCE WESTERLY ALONG THE NORTHERLY RIGHT OF WAY LINE OF ROCK SPRINGS STREET, 261.0' TO A 5/8" X 32" REBAR WITH AN ALUMINUM CAP; THENCE NORTHERLY PARALLEL WITH THE RIGHT OF WAY OF PIERCE AVE, 127.19' TO A 5/8" X 32" REBAR WITH AN ALUMINUM CAP; THENCE EASTERLY, 261.0' TO A REBAR WITH AN ALUMINUM CAP FOUND ON THE WEST RIGHT OF WAY OF PIERCE AVE; THENCE SOUTHERLY ALONG THE WESTERLY RIGHT OF WAY OF SAID PIERCE AVE, 127.11' TO THE POINT OF BEGINNING, LESS A PORTION OF TRACT 316 DESCRIBED AS BEGINNING AT A POINT WHICH IS THE SOUTHEAST CORNER OF TRACT 316; THENCE NORTH 127' ALONG THE EAST LINE OF TRACT 316; THENCE WEST 117'; THENCE SOUTH 127'; THENCE EAST 117' TO THE POINT OF BEGINNING, THE NORTH 200' OF EAST 200' TRACT 325, TRACT 325 EXCEPT THE NORTH 200', THE EAST 205', THE SOUTH 267.75' TRACT 326, EXCEPT THE SOUTH 267.75', ALSO EXCEPT THAT PORTION PLATTED AS BLOCK 1, DRY CREEK PARKWAY AND THE WEST 92.49'

OF THE NORTH 200' TRACT 325, SUNNYSIDE ADDITION, 7TH FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 5.41 ACRES MORE OR LESS.

Area B:

THE SOUTH 132' OF THE NORTH 234' OF TRACT 323, THE SOUTH 130' OF NORTH 364' OF TRACT 323, AND THE NORTH 173.11' OF THE SOUTH 366' OF TRACT 324, SUNNYSIDE ADDITION, 7TH FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 2.97 ACRES MORE OR LESS.

Area C:

THE WEST 30' OF NORTH 91.32' OF TRACT 320, THE NORTH 147' OF SOUTH 415' OF TRACT 320 AND THE WEST 30' OF THE NORTH 78' OF THE SOUTH 268' OF TRACT 320, SUNNYSIDE ADDITION, 7TH FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 1.08 ACRES MORE OR LESS.

Area D:

THE SOUTH 100' OF TRACT 321, THE WEST 98.68' OF THE NORTH 102' OF TRACT 321 AND THE EAST 197.32' OF THE NORTH 102' OF TRACT 321, SUNNYSIDE ADDITION 7TH FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 1.37 ACRES MORE OR LESS.

Area E:

TRACTS 233, 234, 235 AND 236, LESS THE SOUTH 134' OF THE WEST 130' OF TRACT 233; LESS THE NORTH 67' OF THE SOUTH 201' OF THE WEST 130' OF TRACT 233; LESS THE NORTH 67' OF THE SOUTH 268' OF THE WEST 130' TRACT 233; LESS (5.56 ACRES, BOOK 1206 PAGE 490), MORE PARTICULARLY DESCRIBED AS, BEGINNING AT THE NORTHWEST CORNER OF SAID TRACT 233; THENCE ON AN AZIMUTH OF 90 DEG 05' 02" (GRID AZIMUTH FROM NORTH, CITY OF CHEYENNE DATUM) ALONG THE NORTH LINE OF SAID TRACTS 233 & 234, 295.81' TO THE NORTHEAST CORNER OF SAID TRACT 234; THENCE 179 DEG 59' 42", ALONG THE EAST LINE OF TRACT 234, 100.00'; THENCE 145 DEG 42' 03",

262.57' TO A POINT ON THE WEST LINE OF SAID TRACT 236; THENCE 90 DEG 09' 22", 147.95' TO A POINT ON THE EAST LINE OF SAID TRACT 236; THENCE 179 DEG 58' 48", ALONG THE EAST LINE, 282.89' TO THE SOUTHEAST CORNER OF SAID TRACT 236; THENCE 270 DEG 09' 22", ALONG THE SOUTH LINE OF SAID TRACTS 236, 235, 234 & 233, 461.95' TO A POINT DISTANT 130.00' FROM THE SOUTHWEST CORNER OF SAID TRACT 233; THENCE 0 DEG 00' 40" PARALLEL WITH THE WEST LINE OF SAID TRACT 233, 268.00'; THENCE 270 DEG 09' 22", PARALLEL WITH THE SOUTH LINE OF SAID TRACT 233, 130.00' TO THE WEST LINE OF SAID TRACT 233, THENCE 0 DEG 00' 40", ALONG THE WEST LINE OF TRACT 233, 331.03' TO THE POINT OF BEGINNING. PLUS 9498 SQUARE FEET OF VACATED POLK AVE., ORD. #2973, TRACTS 237 & 238 LESS 1.03 ACRES TO LARAMIE COUNTY, PLUS 8897 SQUARE FEET OF VACATED POLK AVE. , ORD. #2973, TRACTS 239 & 240 AND A PORTION OF TRACTS 257 AND 258, LYING NORTH OF U.S. HIGHWAY 30, BEGINNING AT THE NORTHEAST CORNER OF TRACT 257; THENCE WESTERLY, 296'; THENCE SOUTHERLY, 194'; THENCE NORTHEAST, 328.5'; THENCE NORTHERLY 51.6' TO THE POINT OF BEGINNING, SUNNYSIDE ADDITION, 6TH FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 10.17 ACRES MORE OR LESS.

Area F:

THE NORTH 150' OF TRACT 241, THE NORTH 150' OF TRACT 242, THE NORTH 150' OF TRACT 243, THE WEST 80' OF THE NORTH 150' OF TRACT 244, THE NORTH 150' EXCEPT THE WEST 80' (AKA THE EAST 72') OF TRACT 244, THE SOUTH 150' OF THE NORTH 330' OF TRACT 243, THE SOUTH 150' OF THE NORTH 330' OF TRACT 242, THE SOUTH 150' OF THE NORTH 330' OF TRACT 241, THE SOUTH 75' OF THE NORTH 421' OF TRACT 241, THE WEST 30' OF THE NORTH 150' OF VACATED ARTHUR AVENUE ADJACENT TO THE NORTH 150' OF TRACT 244 AND THE NORTH 150' EXCEPT THE WEST 80' (AKA THE EAST 72') OF TRACT 244, SUNNYSIDE ADDITION, 6TH/ FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 7.71 ACRES MORE OR LESS.

Area G:

ALL THAT PORTION OF TRACTS 246, 247 AND 248 LYING SOUTH OF THE SOUTH RIGHT OF WAY LINE OF U.S. HIGHWAY 30 DESCRIBED AS FOLLOWS, BEGINNING AT THE SOUTHEAST CORNER OF SAID TRACT

248 WHICH CORNER BEING ON THE NORTH RIGHT OF WAY LINE OF LARAMIE STREET AND THE WEST RIGHT OF WAY LINE OF HAYES AVENUE IN SUNNYSIDE ADDITION, 6TH FILING; THENCE WEST ALONG SAID NORTH RIGHT OF WAY LINE OF LARAMIE STREET AND THE SOUTH PROPERTY LINE OF TRACTS 248, 247 AND 246, TO A POINT INTERSECTING ON THE SOUTH RIGHT OF WAY LINE OF U.S. HIGHWAY 30 A DISTANCE OF 407.60'; THENCE N 64 DEG -03' E ALONG SAID SOUTH RIGHT OF WAY LINE OF U.S. HIGHWAY 30 A DISTANCE OF 452.40' TO A POINT ON THE EAST BOUNDARY LINE OF TRACT 248 AND THE WEST RIGHT OF WAY LINE OF HAYES AVE; THENCE S 0 DEG -14' E ALONG SAID EAST BOUNDARY OF TRACT 248 A DISTANCE OF 197.50' TO THE POINT OF BEGINNING, THE NORTH 240' OF TRACTS 249, 250, 251 AND 252, EXCEPT A PORTION OF TRACT 252 CONVEYED TO WYOMING DEPARTMENT OF TRANSPORTATION (BOOK 490 PAGE 422) DESCRIBED AS, BEGINNING AT THE NORTHWEST CORNER OF SAID TRACT 252; THENCE SOUTHERLY, 36.5' ALONG THE WEST BOUNDARY THEREOF; THENCE N 64 DEG 03' E, 84.1' TO A POINT ON THE NORTH BOUNDARY THEREOF; THENCE WESTERLY, 75.8' TO THE POINT OF BEGINNING AND A PORTION OF US HIGHWAY 30 RIGHT OF WAY ADJACENT TO SATTERFIELD SUBDIVISION 3RD FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 4.39 ACRES MORE OR LESS.

Area H:

LOTS 3 & 4, BLOCK 1, COUNTRYSIDE ADDITION, A PARCEL IN THE NE1/4 NE1/4 SE1/4 SECTION 26, T14N, R66W, DESCRIBED AS BEGINNING AT A POINT ON THE EAST AND WEST 1/4 LINE OF SAID SECTION 26, 40', S 89 DEG 30' W OF THE EAST 1/4 CORNER OF SAID SECTION 26, WHICH POINT OF BEGINNING IS ON THE WEST RIGHT OF WAY LINE OF THE EXISTING ROAD; THENCE S 0 DEG 18' E, ALONG THE WEST RIGHT OF WAY LINE OF THE ROAD, 370.80'; THENCE S 89 DEG 30' W, 625.40'; THENCE N 0 DEG 18' W, 370.80' TO AN INTERSECTION WITH THE EAST AND WEST 1/4 LINE OF SAID SECTION 26; THENCE N 89 DEG 30' E ALONG THE EAST AND WEST 1/4 LINE OF SAID SECTION 26, 625.20' TO THE POINT OF BEGINNING, A PARCEL IN THE NE1/4 NE1/4 SE1/4 SECTION 26, T14N, R66W, DESCRIBED AS BEGINNING AT A POINT WHICH IS 40', S 89 DEG 30' W AND 370.8' S 0 DEG 18' E OF EAST 1/4 CORNER OF SECTION 26, WHICH POINT OF BEGINNING IS ON THE WEST RIGHT OF WAY LINE OF ROAD; THENCE S 0 DEG 18' E, ALONG THE WEST RIGHT OF WAY LINE OF ROAD, 254.4'; THENCE WEST, 624.6'; THENCE N 0 DEG 17' W, 254.20'; THENCE N 89 DEG 30' E, 625.40' TO THE POINT OF BEGINNING, A PORTION OF THE NE1/4 SE1/4 OF SECTION 26,

T14N, R66W, DESCRIBED AS BEGINNING AT A POINT WHICH BEARS S 73 DEG 13' W, 1181.20' FROM THE EAST 1/4 CORNER OF SAID SECTION 26; THENCE N 89 DEG 29.5' E, 332.46'; THENCE S 0 DEG 20' E, 300.29'; THENCE S 89 DEG 29' W, 332.38'; THENCE N 0 DEG 22.5' W, 300.4' TO THE POINT OF BEGINNING, LESS (0.96 AC, BOOK 1598 PAGE 756) A PORTION DESCRIBED AS BEGINNING AT THE SOUTHWEST CORNER OF 2.29 ACRE PARCEL BELONGING TO CHARLES AND EDITH MESSENGER, BOOK 1252 PAGE 924, BEING THE TRUE POINT OF BEGINNING; THENCE N 89 DEG 29' E, ALONG THE SOUTH LINE OF SAID MESSENGER PARCEL, 255.0'; THENCE N 0 DEG 22' 30" W, PARALLEL TO THE WEST LINE OF SAID MESSENGER PARCEL, 164.5'; THENCE S 89 DEG 29' W, PARALLEL TO THE SOUTH LINE OF SAID MESSENGER PARCEL, 255.0' TO A POINT ON THE WEST LINE OF SAID MESSENGER PARCEL; THENCE S 0 DEG 22' 30" E, ALONG SAID WEST LINE, 164.5' TO THE TRUE POINT OF BEGINNING, A PORTION OF NE1/4 SE1/4 OF SECTION 26, T14N, R66W, DESCRIBED AS BEGINNING AT A POINT WHICH BEARS S 73 DEG 13' W., 1181.2' FROM THE EAST 1/4 CORNER OF SAID SECTION 26; THENCE N 89 DEG 29.5' E., 332.46' TO A POINT; THENCE S 0 DEG 20' E., 330.29' TO A POINT; THENCE S 89 DEG 29' W., 332.38' TO A POINT; THENCE N 89 DEG 29' E., ALONG THE SOUTH LINE OF SAID MESSENGER PARCEL, 255.0' TO A POINT; THENCE N 0 DEG 22' 30" W., PARALLEL TO THE WEST LINE OF SAID MESSENGER PARCEL, 164.5' TO A POINT; THENCE S 89 DEG 29' W., PARALLEL TO THE SOUTH LINE OF SAID MESSENGER PARCEL, 255.0' TO A POINT ON THE WEST LINE OF SAID MESSENGER PARCEL; THENCE S 0 DEG 22' 30" E., ALONG SAID WEST LINE, 164.5' TO THE TRUE POINT OF BEGINNING, A PORTION OF THE NW1/4 NE1/4 SE1/4 OF SECTION 26, T14N, R66W, DESCRIBED AS BEGINNING AT A POINT WHICH BEARS S 73 DEG 13' W, 1181.20' FROM THE EAST 1/4 CORNER OF SAID SECTION 26; THENCE S 0 DEG 22.5' E, 330.14'; THENCE S 89 DEG 29' W, 332.65'; THENCE N 0 DEG 25' W, 330.13'; THENCE N 89 DEG 29.5' E, 332.56' TO THE POINT OF BEGINNING AND THAT PORTION OF THE NE1/4 OF THE SE1/4 OF SECTION 26, T14N, R66W, DESCRIBED AS BEGINNING AT A POINT 330.13' NORTH OF THE SOUTHWEST CORNER OF THE NE1/4 SE1/4 SECTION 26, FROM SAID POINT, 300' NORTH; THENCE EAST, 302'; THENCE SOUTH, 300'; THENCE WEST, 302' TO THE POINT OF BEGINNING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 16.76 ACRES MORE OR LESS.

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating annexation proceedings by cities and towns and requires that a resolution be adopted by the Governing Body certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following criteria found in Wyoming Statute § 15-1-402(a):

(i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the City of Cheyenne;

(ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;

(iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;

(iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;

(v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and

(vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, the City of Cheyenne has created an annexation report, which contains, at a minimum, the required information from Wyoming Statute § 15-1-402(c);

WHEREAS, the City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412 and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the land described above, and as shown in Attachment A, complies with Wyoming Statute §15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

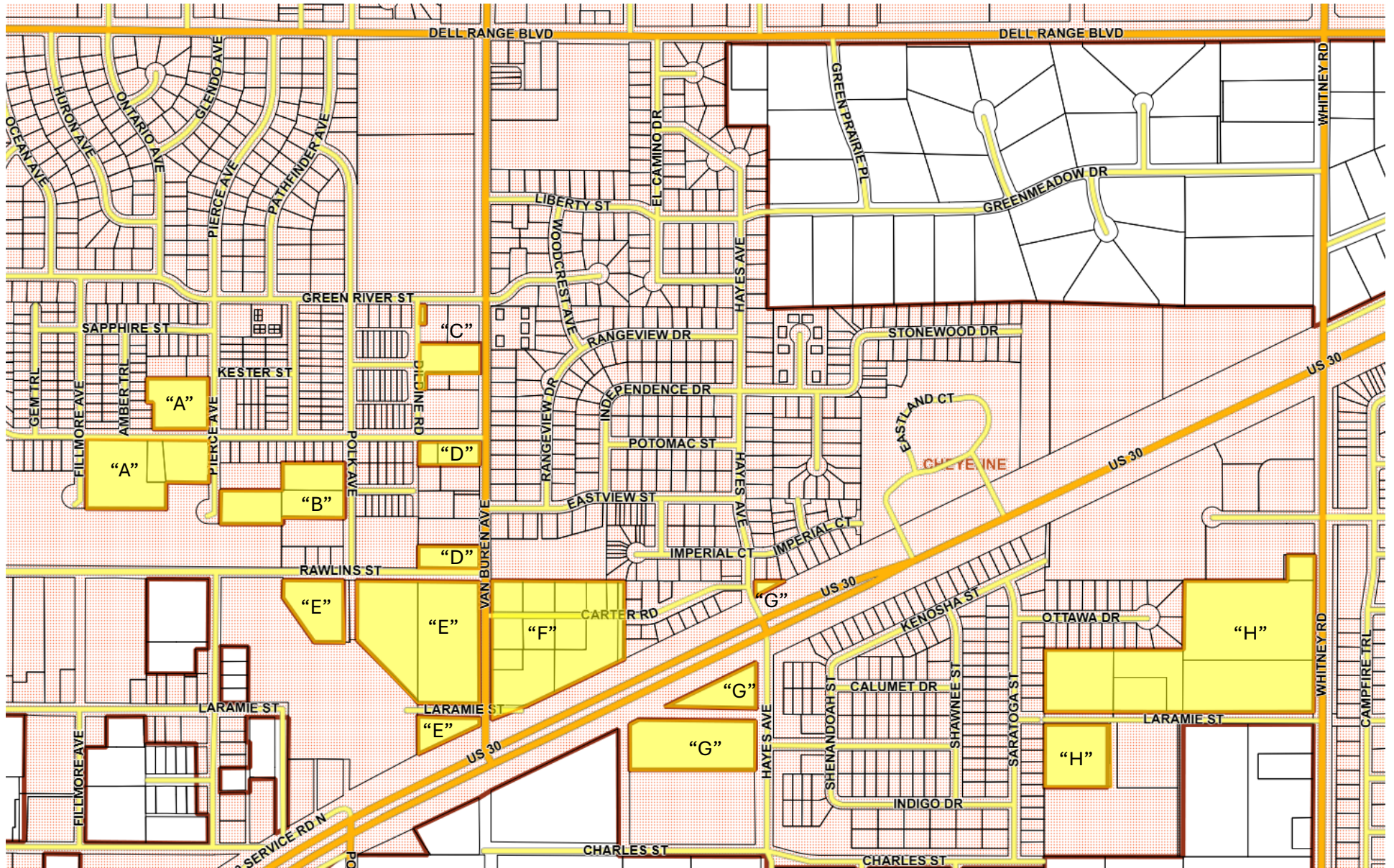
PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



ATTACHMENT A